

Defendant LOVE TRANSIT INC., (hereinafter "Love Transit"). Defendant Love Transit has been unresponsive, unavailable, and otherwise absent since February 12, 2026, despite all reasonable efforts by its counsel and Obsidian. As such, and to avoid irreparable harm, Obsidian seeks to intervene to litigate the liability and damages issues on its own behalf." (Motion, p. 2:8-13.)

"The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code of Civil Procedure section 387(d)(2).) "Section 387 should be liberally construed in favor of intervention." (*Lindell v. Town of San Anselmo* (2006) 139 Cal.App.4th 1499, 1505; see also *Nasongkhla v. Gonzalez*, (1994) 29 Cal. App. 4th Supp.1.)

The Motion is procedurally proper. As of the writing of this tentative opinion, there has been no opposition to Obsidian's Motion.

Tentative Decision

The Court GRANTS Obsidian's Motion for Leave to Intervene. Obsidian is to file its Answer-in-Intervention within five days of notice of this ruling.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600194	CITY OF SAN JACINTO VS PATTI C. NEFF	MOTION FOR ORDER FOR PREJUDGMENT POSSESSION BY CITY OF SAN JACINTO

Tentative Ruling:

On 1/7/26, Plaintiff City of San Jacinto filed its complaint in eminent domain.

On 2/26/26, Plaintiff City of San Jacinto filed its Motion for prejudgment possession. According to the City's Motion, "This Motion is made pursuant to Code of Civil Procedure sections 1255.410 et seq., on the grounds that the City, as an entity with the power of eminent domain, is authorized to take prejudgment possession of the permanent road easement interest in the Property for public street improvements for the San Jacinto Street (Avenue) Safety Improvement Project in the City of San Jacinto, Riverside County, California, and for such other uses as are permitted, pursuant to section 37350 et seq. of the California Government Code and Code of Civil Procedure sections 1240.110 and 1240.120. The City is vested by law with authority to exercise the power of eminent domain to acquire private property for the construction of streets, bridges, and other public infrastructure." (Motion, p. 2:11-19.)

The Motion contains a notice to defendant that if they wish to oppose the motion, they must file and serve their opposition with 30 days. (Motion, p. 2:20-26.)

The Motion is accompanied by a Declaration from Stuart McKibbin, a Contract City Engineer, in support of the Order for prejudgment possession. The Declaration was signed on 12/19/25.

There is a Proof of Service of Summons indicating substituted service on Defendant's son on 3/20/26.

Defendant has not filed an opposition, or any other document, in this action.

An eminent domain plaintiff is presumed to have met the requirements for possession if the motion for prejudgment possession is not opposed within 30 days of service. "The court shall make an order for possession" if it finds that the plaintiff is entitled to take the property by eminent domain, and that it has made the requisite deposit. (CCP §1255.410(d)(1).) If the motion is opposed the condemning agency bears the additional burden of showing that there is an overriding need for prejudgment possession and that if possession is denied, the agency will suffer substantial hardship that is greater than the hardship suffered by the opposing party. (CCP §1255.410(d)(2).)

Plaintiff's Complaint in Eminent Domain is procedurally correct. With the exception noted below, the City has met all the requirements to acquire the property. (The Court notes that the Motion states that the Resolution of Necessity is attached as Exhibit 3 to the Complaint. (Motion, p. 3:20.) It is actually attached as Exhibit 2(A).)

Plaintiff states that "by the time this matter is heard before this Court, the City will have made the requisite deposit of probable just compensation pursuant to Code of Civil Procedure sections 1255.010 et seq. . . . A Notice of Deposit and accompanying Statement of Value and Summary of the Basis for Appraisal for the interests to be acquired will be filed after this deposit is made." (Motion, p. 7:19-25.)

Tentative Decision

If Plaintiff brings its Notice of Deposit and accompanying Statement of Value and Summary of the Basis for Appraisal to the Court hearing, then Plaintiff's Motion for Prejudgment Possession will be GRANTED. If Plaintiff fails to bring the required evidence to the Court hearing, then Plaintiff's Motion for Prejudgment Possession will be DENIED.